

23SMCV04840 23SMCV04840

County: los-angeles

Division: Civil Law and Motion

Department: 207

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

14, 2026

CASE NUMBER

23SMCV04840

MOTION

Motion

for Leave to Amend Complaint

MOVING PARTY

Plaintiff

Ocean Sunrise LLC

OPPOSING PARTY

Defendant

Enedelia Powers

MOTION

This case arises from a dispute among neighbors.

The Operative Second Amended Complaint ("SAC") brought by Plaintiff Ocean Sunrise LLC ("Plaintiff") against the owners of various neighboring properties that overlook Plaintiff's property, alleging fifteen causes of action as follows:

1.

Declaratory Judgment – CC&R Exhibit 2

2.

Breach of Contract

3.

Declaratory Judgment – Injunctive Relief

4.

Public Nuisance – Damages

5.

Declaratory Judgment – Boundary Lines

6.

Declaratory Judgment – Express Easement

7.

Declaratory Judgment – Prescriptive Easement

8.

Declaratory Judgment – Equitable Easement

9.

Fraudulent Transfer (Civil Code, § 3439)

10. Declaratory

Judgment – Boundary Lines

11. Declaratory

Judgment – Prescriptive Easement

12. Declaratory

Judgment – Equitable Easement

13. Intentional

Trespass

14. Negligent

Trespass

15. Conversion

On February 23, 2026, the Court granted Defendant's motion for summary adjudication as to the sixth, seventh, eighth, ninth, and fifteenth causes of action.

A jury trial is currently set in this matter for October 19, 2026.

Plaintiff now moves for leave to file a Third Amended Complaint to add allegations of "new and continuing conduct" by Defendant "discovered in August 2026" concerning the placement of a surveillance camera positioned toward Plaintiff's property and to add causes of action for Private Nuisance and Injunctive Relief.

Defendant opposes the motion and Plaintiff replies.

LEGAL

STANDARD

Amendments

to Pleadings: General Provisions

Under Code of Civil Procedure

section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a

mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

To wit, without notice to the other party the Court has wide discretion to allow either party (i) to add or strike the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect “in furtherance of justice” and “on any terms as may be proper.” (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings “upon any terms as may be just.” (See Code Civ. Proc., § 473, subd. (a)(1). Similarly, Code of Civil Procedure section 576 states “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

Judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901] (citing *Frost v. Whitter* (1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150, 155).) The Court of Appeal in *Morgan v. Superior Court* held “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

“The court may grant leave to amend the pleadings at any stage of the action.” (Weil & Brown, Cal. Practice

Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the motion is timely made and granting the motion will not prejudice the opposing party. (Id. at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Id. at ¶ 6:655, citations omitted. Absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Id. at ¶ 6:653 (citing Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565).) “Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. . . . But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Weil & Brown, supra, at ¶ 6:656, citations omitted.)

“Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, supra, at ¶ 6:663, citation omitted.) For example, the court may cause the party seeking the amendment to pay the costs and fees incurred in preparing for trial. (Id. at ¶ 6:664 (citing Fuller v. Vista Del Arroyo Hotel, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of

Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.”

DISCUSSION

“Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, this policy should be applied only where no prejudice is shown to the adverse party.” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487 [cleaned up].)

Here, with trial about a month away, Plaintiff seeks leave to amend the Complaint to allege new causes of action premised on the new alleged conduct of erecting surveillance cameras directed toward Plaintiff’s property. The Court does not find amendment appropriate here.

If Plaintiff amends her existing lawsuit at this late juncture, Defendant will be prejudiced, as trial will be further delayed, and discovery will need to be reopened as to the new claims. Further, given Defendant’s advanced age, there is a real danger that evidence will be lost vis-à-vis the existing claims if trial is continued and discovery reopened to accommodate Plaintiff’s new claims.

By contrast, because the proposed

amendments involve new causes of action premised upon new conduct, Plaintiff's claims will not be lost if leave to amend is denied. Rather, Plaintiff can simply file a new lawsuit to allege the proposed claims premised upon the new conduct.

Therefore, because Defendant will be prejudiced by the further delay in trial if leave to amend is granted, but Plaintiff will not be prejudiced if leave to amend is denied, as Plaintiff can simply file these new claims in a new lawsuit, the Court finds this to be that rare situation where denial of leave to amend is appropriate.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion for leave to file a third amended complaint.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 14, 2026 ____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court